



OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY

Memo

To: Public and Constitutional Law (Section D) Students
From: Kate Glover Berger
Date: January 2025
Re: December Exam Feedback

INTRODUCTION

It was exciting for me to read your exams, to read your insights, and to see the growth of your learning over the term. Thank you for the time, energy, care, and effort you invested in your exam, and in the course so far. I am just as excited to see how your knowledge of public and constitutional law continues to grow in the Winter Term.

The aim of this memo is to offer general feedback on the December exam. You each have access to your graded exams. Please review your exam in conjunction with the details set out in this memo. As you will have seen, the feedback on your exams is mainly in the form of symbols and numbers, with some but few comments. This memo is intended to offer additional feedback by explaining the numbers and symbols, offering more detailed comments, and identifying the expectations for “good” and excellent answers to each of the written questions. I offer this feedback with the goal of explaining the grade you received and offering suggestions for how you might strengthen your analysis and

approach going forward. I am certainly happy to meet with each of you individually to discuss your exam further. Before scheduling a meeting, I ask that you first review the exam questions (posted on e-class), your graded exam, and this memo.

NUMBERS & SYMBOLS

On your exam, you will find five numbers in the top righthand corner of the first page. The circled number is your score on this exam (out of 30). It is the total of the other four numbers. Those four numbers represent your grades on each of the individual questions. These scores are listed in the order of the questions:

- The first number is your score on question 1(a) (out of 10)
- The second number is your score on question 1(b) (out of 5)
- The third number is your score for Part 2 (out of 5)
- The fourth number is your score for the multiple choice section of the exam (out of 10).

An asterisk (*) beside the points awarded for any particular question indicates that the response was on the border between the mark given and one mark lower. In such borderline situations, I always assign the higher point value. It is worth reflecting on your scores for Parts 1 and 2 separately from your score on Part 3. Parts 1 and 2 required you to provide a detailed written analysis in response to the question posed. The skills of analysis, reasoning, and written communication called for in Parts 1 and 2 are obviously different from the, also important, skills of close reading and analysis needed to answer the questions in Part 3. All three parts of the exam also required that you draw on your knowledge and understanding of the material we've been studying.

As you might know (but are likely still figuring out), the grading profile is not applied to these exam grades (or the April exam grades). Rather, the grading profile applies only to the final grades in the course, that is, the grades that combine all the course components. Thus, I have not applied the profile to these exam grades. That said, as I noted in our review class, I always read most of the exams before sitting down to mark. This allows me to

calibrate my expectations and get a sense of what can fairly count as a “B” range answer (i.e. the “good” range). In this way, the class as a whole sets the standard for a “good” answer. I followed this process for exam as well. In the end, the average mark on the exam was 21.5/30, which is in the B range. As is usually the case, this is higher than it otherwise would have been without an adjustment. The highest grade was 27/30, which was earned by one student. Two students earned 26.5/30.

Please reach out immediately if you have detected an error in the calculation of your total grade on the exam.

In addition to the comments and numbers you see on the exam, you will also see several symbols. These are standardized symbols I use when marking:

- A check mark means “good!”, “that’s right!” and/or “yes!”.
- A vertical line beside some portion of text is questioning its relevance to the question and the analysis in your answer as a whole.
- A horizontal line underneath text indicates that the text is questionable, inaccurate, and/or incomplete in some way.
- A ‘^’ and a horizontal line after some text indicates that the idea expressed therein needs further explanation to be clear, complete, or fully accurate.
- A set of parentheses after some text indicates that a source was needed and should have been included to support the claim being made.

GENERAL FEEDBACK

These exams demonstrate your impressive knowledge and learning in the fields of public and constitutional law that we have studied so far. The scores for Part III (the Multiple

Choice) were particularly impressive, showing your abilities to pay close attention to detail, read carefully, and apply your knowledge to new questions. These are all critically important skills across areas of law. In the written answers, I was also particularly impressed with the structure and organization you brought to your reasoning, along with your ability to spot relevant issues and facts, and work with the law in relation to the available evidence. You showed your skills of identifying and following an analytical structure that was consistent with the law. As we've discussed and seen in this course, public and constitutional law issues are often complicated and are not usually resolved by seeking a "correct" answer. Rather, one of the strongest contributions of constitutional law is its commitment to establishing analytical frameworks for working through the complicated social puzzles that it confronts. Thus, the ability to identify and apply those analytical frameworks is a big part of learning constitutional law. Again, these are all critically important and valuable skills in legal reasoning, and I saw them on your exams.

As always, and as is an important part of the education process, there are also many ways in which exam answers could have been strengthened. I have set out below the features expected of 'good' and 'excellent' answers, all in service of continuing to strengthen your skills of written communication and legal reasoning, as well as your understanding of public and constitutional law concepts. The discussion of these features should be read together with the symbols and comments on your individual exam. Before turning to those features, let me first address a few of the most common errors and areas of improvement seen on the exam.

By far, the most common error on the exam arose in answers to question 1(a). This question asked you to determine the pith and substance of the *Ontario School Safety Act*. This question was asking you to undertake only the "characterization" stage of the two-step process of assessing a statute's validity. Most of you identified the issue accurately and accurately explained how to determine a statute's pith and substance. However, many of you then went on to assess the OSSA's validity by undertaking both characterization and classification. The most surprising examples of this error were on exams that correctly identified the issue - What is the pith and substance of the OSSA? – and correctly explained what the pith and substance of a statute is, but then went on to

assess the OSSA's validity instead of just its pith and substance. This error weakened an answer because it raises questions about whether the author understands the difference between identifying the pith and substance of a statute and assessing the validity of a statute. Further, it inevitably meant that the author allocated time to the classification exercise that could have been invested into the characterization analysis. Further still, because we had not yet studied the heads of power in detail, the classification analyses were almost always weak and/or wrong in law. This was inevitable as you did not have that in-depth knowledge yet.

Other common errors appeared in the characterization analysis. While most exams accurately identified at least parts of the legal framework and principles for identifying a statute's pith and substance, that framework was often not followed in one or more ways. For example:

- Many students acknowledged the principle from the *GGPPA Reference* that characterization and classification must be kept separate so that a statute's pith and substance is not defined in terms of any particular subject matter. Yet, many students also relied on Parliament's power over criminal law to define their analysis of the OSSA's pith and substance, ultimately concluding on the characterization exercise that the "pith and substance is criminal law". In these cases, while the principle is accurate, it wasn't applied.
- Many students identified the framework for assessing a statute's pith and substance, again recently confirmed in the *GGPPA Reference*, which provides that a statute's pith and substance can be assessed by looking to the statute's purpose (as found through intrinsic and extrinsic evidence) as well as its effects (both legal and practical effects). Two common errors followed. First, many answers did not consider all the forms of evidence identified as relevant in the framework (i.e. intrinsic and extrinsic evidence of purpose, legal effects, and practical effects). Second, many answers set out much of the relevant evidence but then reached a conclusion on the basis of one fact (usually the anonymous letter about the

Freedom Academy) without explaining why that fact outweighed all the other evidence.

Another common error was insufficient reference to authorities. This was particularly prevalent in answers to question 1(b) and Option 2 in Part 2. I indicated on your exams where an authority should have been provided. In short, as a general rule, every legal claim you make should be supported by reference to an authority. Exceptions include circumstances when you are applying already stated law to the facts of the case or when you are stating an opinion/commentary about an authority.

The final common error I will set out here was seen in response to question 1(b) and Option 1 in Part 2. Both questions stated that you could take certain issues as already decided. However, many students undertook the analysis for the matters identified as already settled. This weakened the answer because it was not directly responsive to the question asked and because the analysis of those settled issues was inevitably based on incomplete information (i.e. the settled issues called for an analysis of facts that were not present in the hypothetical fact pattern and/or legal analysis of issues we had not yet covered). Further, it meant that valuable time was spent on unnecessary issues rather than directed at the issue you were asked to analyze.

Overall, when reflecting on the opportunities for strengthening the exams further, I found myself coming back to the following paragraph from a past feedback memo, which ultimately applies equally to the December exams this year:

The most common constructive comments across the exams dealt with: responding directly to the question asked; applying the relevant legal frameworks accurately and completely; carefully and precisely working with the relevant facts; and explaining your reasoning rather than moving directly from listing the facts to conclusion. For the most part, these common comments could be categorized under the heading of 'precision and justification'. In other words, the most common opportunities for strengthening answers were in terms of: reading carefully (both the facts and the questions) and explaining your reasoning – and

the law -- fully and precisely. These are skills that take tremendous practice and deploying them in the realm of legal reasoning is new for most/all of you. The December exam and the feedback you receive are in service of your continued building of these skills. That said, these skills will continue to be honed well beyond law school. Indeed, it's one of the joys of any form of legal education and career – the learning of content and skills is a life-long process”.

There were other common shortcomings of course, and these are underlined or indicated on your exams. I have highlighted the points above because they are so widely applicable and because they are relevant to other areas of law as well. This is an opportunity for you to reflect on these points, consider why errors were made, and how to avoid them in the future, all of which is part of the education process and the process of building the foundations of your capacity for legal reasoning.

Let me turn now to some specific guidance on expectations for, and the features of, good and strong answers to the exam questions.

In short, strong answers were those that were directly responsive to the question asked, provided an analysis that was clearly written and well-organized (accounting for the exam conditions under which it was written), relied on relevant authorities to support the reasoning provided, and demonstrated good skills of legal analysis by identifying the legal issues raised in the fact pattern, accurately applying the authorities, providing persuasive reasoning to support all legal conclusions, and avoiding discussion of irrelevant issues and law. The strongest answers demonstrated those features, along with a careful and thoughtful analysis of the facts and a true comfort with the cases and authorities. On this exam and generally speaking, legal analysis can move from ‘good’ to excellent (focusing in particular on quality of communication and quality of analysis) by demonstrating one or more of the following qualities, all of which I saw in this year’s December exams:

- Mastery of the material (e.g. nimble engagement with the law, facts, and complications; clear discernment of what was relevant and irrelevant;

comprehensive justification of each conclusion reached, whether on a preliminary or final point).

- Independent thought and judgment (e.g. synthesis of the material and organization into one's own analytical framework; drawing on the law to assess the facts rather than trying to squish facts into existing legal categories; particularly thoughtful reflection on the facts and the interaction of pieces of evidence)
- Insight into issues and/or authorities
- High skill in grappling with conflicting possibilities, counter-arguments and/or alternatives
- Attention to detail in reasoning with authorities and the facts
- Excellent structure and organization of reasoning

With these general comments in mind, let me now turn to the individual questions.

Part 1 (15 marks – ((a) 10 marks; (b) 5 marks))

The question for Part 1 asked:

You are a law clerk for one of the judges of the Supreme Court of Canada. The Court will soon hear submissions in the reference case dealing with the constitutionality of the *Ontario School Safety Act*. Your judge asks you to prepare a memo dealing with two issues on which the participants in the reference disagree: (a) What is the pith and substance of the *Ontario School Safety Act*? and (b) If the *Ontario School Safety Act* and Bill C-80 are both constitutionally valid and there is no operational conflict between them, should the *Ontario School Safety Act* be declared inoperable on other grounds?

Draft the memo addressing these two issues. Be sure to explain your reasoning fully, with reference to relevant authorities.

Strong answers to the questions in Part 1 demonstrated the general features described above. Further, a strong answer in response to question 1(a) was expected to do the following with reference to at least some of the relevant authorities:

- Identify the issue at stake, namely what is the pith and substance of the *OSSA*;
- Define 'pith and substance' and identify the legal framework for identifying it (*Greenhouse Gas Pollution Pricing Act*; *Morgentaler*; *Murray Hall*);
- Assess the evidence through that framework (in other words, apply the law to the facts). This required you to assess the facts, including the text and operation of the statute, to determine (i) the purpose of the *Act*, by looking to the intrinsic and extrinsic evidence, and (ii) the *Act's* effects, by looking to its legal and practical effects.
- Weigh and assess competing facts and factors, without favouring any particular fact or factor without justification; consider the whole of the evidence. Of particular relevance was the *OSSA's* Preamble and section 1, along with provisions in the *Act* that spoke to its purpose; the evidence listed in the Sphere & Post article; and the facts set out in the Letter to the Editor.
- Avoid framing the characterization analysis in terms of the heads of power listed in sections 91/92.
- Reach a justified and well-reasoned conclusion clearly identifying the pith and substance of the *Act*.

A 'good' answer in response to question 1(b) was expected to:

- Identify the issue at stake, namely whether the *OSSA* should be deemed inoperable if it is valid and has no operational conflict with Bill C-80, which is also valid.

- Demonstrate knowledge of ‘operability’ and how to deal with legislative conflicts by, for example:
 - o noting that none of the textual conflicts rules apply in the circumstances;
 - o stating the general rule of operability, namely the paramountcy doctrine;
 - o stating that a conflict arises in one of two situations (*Moloney*);
 - o identifying the only conflict that needs to be considered on the facts (i.e. frustration of federal purpose);
 - o State the two step process for assessing whether the operation of a provincial statute frustrates the purpose of a federal statute (*Orphan Well*);
 - o State that the burden is on the party alleging the conflict and that the burden is high (*Orphan Well, Lemare Lake*)
- Consider the purpose of Bill C-80 by looking to the press release;
- Consider whether the operation of OSSA frustrates that purpose by looking to the particulars of each;
- Reach a conclusion that directly responds to the question asked;
- Refrain from dealing with the issues of validity or operational conflict.

As noted above, the most common point of constructive feedback on question 1(a), by far, was to read and respond to the question asked. The question asked you to identify the pith and substance of OSSA. This question (a) required you to clearly identify the pith and substance of the *Act* on the evidence set out in the fact pattern; and (b) does not ask you how the pith and substance might be classified under the heads of power. In other words, you were not asked to assess the validity of the *Act*. At the time you wrote the exam, we had not yet studied the heads of power in sufficient detail, depth, or breadth for you to engage in a full and meaningful assessment of validity. As we have now discussed, for many of the heads of power, including criminal law under section 91(27), the analysis is technical

and not necessarily intuitive or simply a matter of ordinary meanings. To reflect this, the question posed was narrow and well within your expertise. Specifically, you were asked to consider the *Act's* pith and substance (i.e. its dominant characteristic) only. Answering this question entailed applying the frameworks from, primarily, the *Greenhouse Gas Pollution Pricing Act Reference* and *Morgentaler* to the facts surrounding the enactment of the *Act*.

There was a set of very common issues that arose in the exam answers, attention to which would strengthen answers in the future. I set out these common issues here in point form for ease of reference:

- **Framing the issue:** Many of your exam answers framed the issue as 'determining the validity of the *Act*' or correctly articulated the issue but then sought to fully assess the validity of the *Act*. Again, the question did not ask about the *Act's* validity, only its pith and substance. The strongest answers maintained focus on this issue.
- **Failing to reach a conclusion:** Many of your exam answers did not ultimately identify the pith and substance of OSSA. In these cases, the answer usually identified the correct legal framework, and applied it to the evidence, but then failed to examine the evidence as a whole in order to identify and define OSSA's pith and substance. In doing so, these answers did not demonstrate skills of (i) grappling with facts that include competing and conflicting interests or (ii) justifying one's legal conclusions.
- **Failing to justify conclusions:** Many of your exam answers identified the relevant evidence and identified the pith and substance of the *Act* but did not present an assessment of the evidence as a whole (i.e. did not sort through the various sources of evidence) or explain how the evidence supported the conclusion or explain why certain evidence was accepted over other evidence.

Sometimes failing to justify conclusions arose from statements like, "It is clear that the pith and substance is...." and "Obviously, the pith and substance is...", when no

assessment of the evidence and law had been provided to make the conclusion “clear” or “obvious”.

- **Reaching legal conclusions on insufficient information:** This was often the case when exam answers offered a full validity analysis. As I mentioned above, when you wrote the exam, we had not fully studied the heads of power and so you did not yet have familiarity with the full set of relevant authorities or structures of reasoning on which to make these arguments in a meaningful and legally complete way.
- **Lacking in specificity and/or precision:** As you likely are already becoming familiar with, precision in your language, logic, and arguments is an important feature of legal analysis. The need for precision and specificity arises in many contexts. While the expectations for such precision and specificity are much lower in an exam scenario, I offer the following examples for use in other contexts.
 - o **Summarizing the law:** When you are setting out legal frameworks, small details can make a substantive difference. For example, there is a meaningful difference between saying “intrinsic evidence (i.e. purpose clause and preamble)” and “intrinsic evidence (e.g. purpose clause, preamble)”. The former indicates that the provided list of sources of intrinsic evidence is closed, while the latter (correctly) indicates that the list of provided sources is open and non-exhaustive. When determining the pith and substance of an *Act*, it is critical to know which sources of evidence can be considered and which ones are irrelevant. Thus, the difference between a closed and open list of sources can be determinative of the outcome of the entire analysis.
 - o **Analyzing the evidence:** The cases identify what can and cannot be considered when assessing the pith and substance of a statute. What will always require close attention is the language of the statute being challenged and an understanding of how it operates. Attention to detail and

really working with the statute – e.g. reading it actively, diagramming how it operates, considering how it applies in practice and in real situations – is an unavoidable part of any division of powers analysis. In this case, the intrinsic evidence in particular required you to be detailed in your assessment of the statute, specific in setting out the various competing and wide-reaching purposes, and willing to wrestle with those ideas. Organizing the evidence from the statute, and setting it out expressly and specifically rather than making generalizations, helps to both clarify and amplify the persuasiveness of your arguments. A number of exam answers were too general when setting out the relevant evidence, did not provide specific references to the statute when assessing pith and substance, and demonstrated a surface understanding of the *Act* and its operation. This makes pith and substance analyses very difficult and precludes them from being very persuasive.

- **Applying the law:** Many exam answers (accurately) indicated that there was a need to maintain a separation between the characterization step of the analysis and the classification stage, and yet, went on to analyze and define the *Act's* pith and substance in terms of the heads of power. As noted in the *GGPPA Reference*, the pith and substance should be assessed and articulated without reference to and independently from the heads of power.

Part 2 (5 marks)

For question 2, you had the choice of two questions. The instructions provided: “Please answer ONE (1) of the TWO (2) questions provided. For the question you choose, indicate whether you agree or disagree with the statement provided and explain your position fully, with reference to relevant authorities”

You were to choose one of the following options:

1. Recall the facts in Part 1 of this exam. Now assume the Supreme Court concludes that: (a) the *Ontario School Safety Act* as a whole is valid; and (b) section 8 of the *Ontario School Safety Act* is a non-serious intrusion into Parliament's power over criminal law under section 91(27) of the *Constitution Act, 1867*.

AGREE or DISAGREE: Section 8 of the *Ontario School Safety Act* should be declared invalid and of no force and effect under section 52(1) of the *Constitution Act, 1982*.

2. **AGREE or DISAGREE:** The doctrines of modern federalism (e.g. the double aspect doctrine, the ancillary powers doctrine, the doctrine of interjurisdictional immunity, and the doctrine of paramountcy) are at odds with the idea of flexible federalism because, on the whole, they favour exclusive jurisdiction over overlapping jurisdiction.

A good answer was expected to:

- Clearly state whether you agree or disagree with the statement provided;
 - Fully explain your position;
 - Support position with reference to relevant authorities;
 - Write clearly and in a well-structured way.
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- For Option 1, a good answer was expected to identify the issue in terms of the validity of section 8 of the *Act*; identify the need to apply the Ancillary Powers Doctrine to assess the validity of section 8; set out the applicable framework (*General Motors*; *Lacombe*); apply the framework to the facts; and reach a justified conclusion on the validity of section 8.

- For Option 2, a good answer was expected to defend their position with reference to multiple doctrines of modern federalism, the meaning of the principle of democracy, and the impact of the doctrines on legislative freedom.
- Reach a justified conclusion that directly responds to the question asked.

Answers to Part 2 were generally well done. There were no common shortcomings that appeared in responses to Part 2. For Option 1, the strongest answers were direct and specific in their legal analysis and showed a sophisticated understanding of the statutory scheme of OSSA. For Option 2, the strongest answers were those that were as specific as possible as when describing the doctrines and their impact on legislative freedom and democracy and that showed sufficient comfort with the material to identify competing impacts of different doctrines and meaningfully weigh these impacts.

Part III (10 marks, 5 questions worth 2 marks each)

For Part III, the answers to the questions are:

1. C
2. FALSE
3. E
4. C
5. TRUE
6. B

As always, I tracked errors to these questions to assess whether there were flaws or ambiguities in the questions. No pattern of errors or ambiguities arose in your answers or were identified on your exams. Accordingly, these were the answers that were accepted as correct.

I hope this feedback memo is helpful and, when read together with the exam and your answers, provides meaningful insight into the grade you received and opportunities for strengthening your analysis or approach going forward. If there is further feedback that would be of use to you, please do not hesitate to reach out. I will post a link to an electronic scheduler for you to make an appointment or you can reach out by email. Further, and as always, if you have feedback for me on the course, pedagogy and/or the exam – its expectations, format, design, content, and so on – I certainly welcome it and my future students will be grateful too.

Thank you again for your investment in the exam and our course. I am grateful to each of you for our Fall semester and am eager for all the Winter Term (and beyond!) have in store for you.

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